EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 49264/12
Leonid Aleksandrovich MOROZ and Others
against Azerbaijan
(see appended table)

The European Court of Human Rights (Fifth Section), sitting on 20 October 2022 as a Committee composed of:

Stéphanie Mourou-Vikström*, President*,
Ivana Jelić,
Kateřina Šimáčková*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 31 July 2012,

Having regard to the formal declarations accepting a friendly settlement of the case,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The list of applicants is set out in the appended table.

The applicants were represented by various lawyers whose details are set out in the appended table.

The applicants' complaints under Articles 9 and 11 of the Convention concerning alleged breach of the right to freedom of religion and right to freedom of association, namely the right to form a religious community, were communicated to the Azerbaijani Government ("the Government"). Complaints based on the same facts were also communicated under Article 14 of the Convention.

The Court received the friendly-settlement declarations, signed by the parties, under which the applicants agreed to waive any further claims against Azerbaijan in respect of the facts giving rise to this application, subject to an undertaking by the Government to pay them jointly the amount detailed in the appended table. This amount will be converted into the currency of the respondent State at the rate applicable on the date of payment, and will be payable within three months from the date of notification of the Court's

decision. In the event of failure to pay this amount within the above-mentioned three-month period, the Government undertake to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

The payment will constitute the final resolution of the case.

THE LAW

The Court takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and the Protocols thereto and finds no reasons to justify a continued examination of the application.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases in accordance with Article 39 of the Convention.

Done in English and notified in writing on 10 November 2022.

Viktoriya Maradudina Acting Deputy Registrar	Stéphanie Mourou-Vikström President

APPENDIX

Application raising complaints under Articles 9 and 11 of the Convention (alleged breach of the right to freedom of religion and right to freedom of association)

Application no. Date of introduction	Applicant's name Year of birth/ registration	Representative's name and location	Other complaints under well-established case-law	Date of receipt of Government's declaration	Date of receipt of Applicant's declaration	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per application (in euros)[1]
49264/12 31/07/2012 (3 applicants)	**Leonid Aleksandrovich MOROZ** 1971 **RELIGIOUS COMMUNITY OF JEHOVAH'S WITNESSES** 1999 **Kirill STEPANOV** 1979	Richard Cook Chelmsford, the United Kingdom André Carbonneau Strasbourg, France Jason Wise Strasbourg, France	Article 14 of the Convention - alleged discrimination in the enjoyment of the Convention rights	20/12/2021	09/11/2021	5,500

[1] Plus any tax that may be chargeable to the applicants.